

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAMUD JAWANEH,

SUMMONS

Plaintiff,

-against-

Index No.:

CITY OF NEW YORK, DEREDEL ROSARIO, AND
JOHN/JANE DOE # 1 - 7,

Date Filed:

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your Answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance on the attorneys of Plaintiff within twenty days after the service of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

This basis of venue is the location of the incident.

The incident occurred at 626 Bergen Avenue, Bronx, New York.

Dated: New York, New York
July 28, 2023

/s/
Gregory Paul Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorneys for Plaintiff Mamud Jawaneh
10 Times Square, 6th Floor
New York, NY 10018
Phone: (646) 706-7481

Defendant Addresses:

City of New York
100 Church Street
New York, NY 10007

Deredel Rosario
257 Alexander Avenue
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAMUD JAWANEH,

Plaintiff, COMPLAINT

-against-

Index No.

CITY OF NEW YORK, DEREDEL ROSARIO, AND
JOHN/JANE DOE # 1 - 7,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff Mamud Jawaneh, by his attorneys, Law Office of Gregory P. Mouton, Jr., LLC,
respectfully alleges:

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of his rights under the Constitution of the United States, the Constitution of the State of New York, and the laws of the State of New York.

JURISDICTION AND VENUE

2. The incident occurred at 626 Bergen Avenue, Bronx, New York.

3. This action falls within one or more of the exemptions set forth in N.Y. Civ. Proc. L. & R. § 1602.

JURY DEMAND

4. Mr. Jawaneh demands a trial by jury in this action.

PARTIES

5. Plaintiff Mamud Jawaneh is a resident of the County of Bronx, State of New York.

6. Defendant City of New York is a municipal organization organized under the laws of the State of New York.

7. Defendant City of New York operates the New York City Police Department (“NYPD”), a department or agency of Defendant City of New York.

8. The NYPD is responsible for the appointment, training, supervision, promotion, and discipline of police officers and supervisory police officers, including the individually named defendants herein.

9. At all times relevant herein, Defendant Deredel Rosario was an officer, employee, and/or agent of Defendant City of New York.

10. At all times relevant herein, Defendant Rosario was acting within the scope of his employment with Defendant City of New York.

11. At all times relevant herein, Defendant Rosario was acting under color of state law.

12. Defendant Rosario is sued in his individual and official capacities.

13. At all times relevant herein, Defendants John/Jane Doe # 1 - 7 were supervisors, officers, employees, and/or agents of Defendant City of New York.

14. At all times relevant herein, Defendants John/Jane Doe # 1 - 7 were acting within the scope of their employment with Defendant City of New York.

15. At all times relevant herein, Defendants John/Jane Doe # 1 - 7 were acting under color of state law.

16. Defendants John/Jane Doe # 1 - 7 are sued in their individual and official capacities.

17. The names John/Jane Doe # 1 - 7 are fictitious, their true names being unknown to Mr. Jawaneh at this time.

STATEMENT OF FACTS

18. On May 1, 2022, Mr. Jawaneh was lawfully present at 626 Bergen Avenue, Bronx, New York ("Subject Location").

19. Mr. Jawaneh was working that day as a Fire Guard/Safety Guard for Allied Universal Protection Services, a contractor providing security services at the Subject Location.

20. Mr. Jawaneh called 9-1-1 because of a security breach at the Subject Location.

21. The individual defendants arrived to the Subject Location and subsequently attacked and arrested Mr. Jawaneh, and, among other things, slammed Mr. Jawaneh against an elevator wall, kneed Mr. Jawaneh, and placed him in painful positions while he was handcuffed.

22. Mr. Jawaneh was arrested without probable cause.

23. The arrest of Mr. Jawaneh was approved at the Subject Location by the ranking individual defendant at the Subject Location.

24. The individual defendants arrested Mr. Jawaneh for a violation of N.Y. Penal Law § 240.20(6).

25. Mr. Jawaneh was unlawfully searched at the Subject Location.

26. The individual defendants transported Mr. Jawaneh to the police precinct for processing.

27. Mr. Jawaneh was unlawfully searched at the police precinct.

28. The individual Defendants contacted the Bronx County District Attorney's Office, falsely alleging that Mr. Jawaneh had violated N.Y. Penal Law § 240.20(6).

29. Based on these fabricated allegations, the Bronx County District Attorney's Office forwarded to Defendant Rosario a Criminal Court Complaint.

30. The Criminal Court Complaint was reviewed and then signed by Defendant Rosario.

31. When reviewing and signing the Criminal Court Complaint, Defendant Rosario knew the allegations contained therein to be false.

32. The executed Criminal Court Complaint was then forwarded by Defendant Rosario to the Bronx County District Attorney's Office.

33. Legal process was issued against Mr. Jawaneh, and Mr. Jawaneh was subsequently arraigned on May 20, 2022.

34. During the pendency of the criminal proceeding, the individual defendants forwarded false evidence to the Bronx County District Attorney's Office, *inter alia*, arrest reports, complaint reports, evidence vouchers, and property vouchers.

35. The charges against Mr. Jawaneh were subsequently dismissed by judge on May 20, 2022.

36. Mr. Jawaneh suffered damage as a result of Defendants' actions. Mr. Jawaneh , *inter alia*, deprived of liberty and suffered emotional distress, physical injury, mental anguish, fear, pain, anxiety, embarrassment, humiliation, and damage to reputation.

37. On or about July 20, 2022, Mr. Jawaneh served upon, presented, and filed with Defendants a Notice of Claim in writing.

38. Defendants have refused or neglected to make any adjustment or payment.

FIRST CAUSE OF ACTION

Unlawful Stop (Federal)

39. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

40. Defendants violated the Fourth and Fourteenth Amendments because they stopped Mr. Jawaneh without reasonable suspicion or probable cause.

41. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SECOND CAUSE OF ACTION

Unlawful Stop (State)

42. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

43. Defendants violated the New York State Constitution, Article I, § 12 because they stopped Mr. Jawaneh without reasonable suspicion or probable cause.

44. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

THIRD CAUSE OF ACTION

Unlawful Search (Federal)

45. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

46. Defendants violated the Fourth and Fourteenth Amendments because they searched Mr. Jawaneh without reasonable suspicion or probable cause.

47. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FOURTH CAUSE OF ACTION

Unlawful Search (State)

48. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

49. Defendants violated the New York State Constitution, Article I, § 12 because they searched Mr. Jawaneh without reasonable suspicion or probable cause.

50. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FIFTH CAUSE OF ACTION

False Arrest (Federal)

51. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

52. The individual defendants violated the Fourth and Fourteenth Amendments because they arrested Mr. Jawaneh without probable cause.

53. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SIXTH CAUSE OF ACTION

False Arrest (State)

54. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

55. The individual defendants violated the New York State Constitution, Article I, § 12 because they arrested Mr. Jawaneh without probable cause.

56. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SEVENTH CAUSE OF ACTION

Excessive Force (Federal)

57. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

58. The individual defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on Mr. Jawaneh.

59. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

EIGHTH CAUSE OF ACTION

Excessive Force (State)

60. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

61. The individual defendants violated the New York State Constitution, Article I, § 12 because they used unreasonable force on Mr. Jawaneh.

62. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

NINTH CAUSE OF ACTION
Fabrication of Evidence (Federal)

63. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

64. The individual defendants created false evidence against Mr. Jawaneh.

65. The individual defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's Office.

66. In creating false evidence against Mr. Jawaneh, and in forwarding false evidence to prosecutors, the individual defendants violated Mr. Jawaneh's right to substantive due process under the Due Process Clause of the Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States.

67. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TENTH CAUSE OF ACTION
Fabrication of Evidence (State)

68. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

69. The individual defendants created false evidence against Mr. Jawaneh.

70. The individual defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's Office.

71. In creating false evidence against Mr. Jawaneh, and in forwarding false evidence to prosecutors, the individual defendants violated Mr. Jawaneh's right to substantive due process under the New York State Constitution, Article I, § 6.

72. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

ELEVENTH CAUSE OF ACTION
Malicious Abuse of Process (Federal)

73. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

74. The individual defendants issued and/or caused to be issued legal process to place Mr. Jawaneh under arrest in violation of the Fifth and Fourteenth Amendments of the United States Constitution.

75. The individual defendants arrested Mr. Jawaneh in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their unlawful stop of and use of excessive force against Mr. Jawaneh.

76. The individual defendants pursued these collateral objectives after issuance of legal process by, *inter alia*, forwarding false evidence to the Bronx County District Attorney's Office and continuing to participate in the prosecution of Mr. Jawaneh.

77. The individual defendants acted with intent to do harm to Mr. Jawaneh without excuse or justification.

78. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TWELFTH CAUSE OF ACTION

Abuse of Process (State)

79. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

80. The individual defendants issued and/or caused to be issued legal process to place Mr. Jawaneh under arrest in violation of the laws of the State of New York.

81. The individual defendants arrested Mr. Jawaneh in order to injure, harass, and cause economic injury to Mr. Jawaneh.

82. The individual defendants pursued these objectives after issuance of legal process by, *inter alia*, forwarding false evidence to the Bronx County District Attorney's Office and continuing to participate in the prosecution of Mr. Jawaneh.

83. The individual defendants acted with intent to do harm to Mr. Jawaneh without excuse or justification.

84. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

THIRTEENTH CAUSE OF ACTION
Malicious Prosecution (Federal)

85. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

86. The individual defendants initiated the criminal proceedings against Mr. Jawaneh by issuing and/or causing to be issued legal process against Mr. Jawaneh in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

87. The individual defendants lacked probable cause to commence the criminal proceedings against Mr. Jawaneh.

88. The individual defendants' actions were motivated by actual malice.

89. The criminal proceedings were terminated in favor of Mr. Jawaneh.

90. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FOURTEENTH CAUSE OF ACTION
Malicious Prosecution (State)

91. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

92. The individual defendants initiated the criminal proceedings against Mr. Jawaneh by issuing and/or causing to be issued legal process against Mr. Jawaneh in violation of the laws of the State of New York.

93. The individual defendants lacked probable cause to commence the criminal proceedings against Mr. Jawaneh.

94. The individual defendants' actions were motivated by actual malice.

95. The criminal proceedings were terminated in favor of Mr. Jawaneh.

As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FIFTEENTH CAUSE OF ACTION
Failure to Intervene (Federal)

96. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

97. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene and prevent such conduct; and failed to intervene.

98. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States.

99. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SIXTEENTH CAUSE OF ACTION
Negligent Supervision & Retention

100. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

101. Defendant City of New York knew or should have known of the individual defendants' propensity for the conduct alleged herein.

102. Defendant City of New York failed to take any steps to protect Mr. Jawaneh from the actions and/or inactions of the individual defendants.

103. The injuries sustained by Mr. Jawaneh were the result of the negligent retention and/or supervision of the individual defendants by Defendant City of New York.

104. The individual defendants were supervisors, co-employees, and/or working together at the NYPD.

105. The individual defendants were negligent in that they failed to ensure that their co-employees provided proper supervision.

106. Despite knowing that their subordinates and/or co-employees were negligent, Defendants continued to employ the individual defendants, and took no steps to rectify their actions.

107. As a result of the foregoing, Mr. Jawaneh was caused to suffer severe personal injuries.

108. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the New York State Constitution; in violating the New York City Administrative Code; in allowing Mr. Jawaneh's welfare to become endangered; and in otherwise being negligent.

109. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SEVENTEENTH CAUSE OF ACTION

Negligence

110. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

111. Defendants failed to take any steps to protect Mr. Jawaneh, including providing supervision.

112. As a result of the foregoing, Mr. Jawaneh was caused to suffer severe personal injuries.

113. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the New York State Constitution; in violating the New York City Administrative Code; in allowing Mr. Jawaneh's welfare to become endangered; and in otherwise being negligent.

114. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

EIGHTEENTH CAUSE OF ACTION

Assault

115. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

116. The individual defendants intentionally acted to place Mr. Jawaneh in apprehension of imminent harmful or offensive bodily contact.

117. Mr. Jawaneh suffered apprehension of imminent harmful or offensive bodily contact.

118. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

NINETEENTH CAUSE OF ACTION

Battery

119. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

120. The individual defendants intended to make bodily contact with Mr. Jawaneh.

121. The individual defendants made bodily contact with Mr. Jawaneh.

122. Consequently, Mr. Jawaneh suffered bodily contact which was harmful, offensive, and without Mr. Jawaneh's consent.

123. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TWENTIETH CAUSE OF ACTION

Conspiracy under 42 U.S.C. § 1983

124. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

125. The individual defendants and members of the Bronx County District Attorney's Office jointly participated in the deprivation of Mr. Jawaneh's constitutional rights as set forth herein.

126. The individual defendants conspired in the deprivation of Mr. Jawaneh's constitutional rights by collectively lying about Mr. Jawaneh's actions and conduct, and intentionally withholding and/or destroying exculpatory evidence in order to support the individual defendants' fabricated version of the events.

127. As a result of the individual defendants' malicious efforts to damage Mr. Jawaneh, Mr. Jawaneh's liberty was restricted, and Mr. Jawaneh restrained, subjected to handcuffing, and, among other things, falsely arrested, searched, and prosecuted.

128. As a direct and proximate result of this unlawful conduct, Mr. Jawaneh sustained the damages alleged herein.

PRAYER FOR RELIEF

WHEREFORE, Mr. Jawaneh respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally, on each cause of action;
- (b) Punitive damages against the individual defendants, jointly and severally, on each cause of action;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: New York, New York
July 28, 2023

By: /s/
Gregory Paul Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorneys for Plaintiff Mamud Jawaneh
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New York, NY 10018
Phone: (646) 706-7481

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MAMUD JAWANEH,

Plaintiff,

-against-

CITY OF NEW YORK, DEREDEL ROSARIO, AND JOHN/JANE DOE # 1 - 7,

Defendants.

COMPLAINT

LAW OFFICE OF GREGORY P. MOUTON, JR., LLC

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Phone & Fax: (646) 706-7481